

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, January 30, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25457 against Sergeant Elliot Zinstein, Tax Registry No. 947634. The case was conferenced on January 25, 2024, before Assistant Deputy Commissioner-Trials Jeffrey Adler, who approved the dismissal of the charges in return for a negotiated penalty of a Command Discipline Schedule (B), with the forfeiture of TEN (10) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2022-25457BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, ZINSTEIN	FIRST ELLIOT	M.I. S	COMMAND OFF OF DEP COM OF TRAINING
SHIELD NO. 5494	TAX REGISTRY NO. 947634	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street, New York County, wrongfully used force, in that he shoved an individual about the torso without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street, Brooklyn Central Booking, New York County, wrongfully used force, in that he shoved an individual with a baton without police necessity.	DISMISSED	
3 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street, Brooklyn Central Booking, New York County, wrongfully	DISMISSED	


FIRST DEPUTY COMMISSIONER

3/12/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

4/10/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

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2022-25457BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
used force, in that he struck an individual with a baton without police necessity.		
4 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street, New York County, wrongfully used force, in that he shoved an individual about the torso with a baton without police necessity.	DISMISSED	
5 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street; New York County, wrongfully used force, in that he struck § 87(2)(b) with a baton about the upper body without police necessity.	DISMISSED	
6 . Sergeant Elliot ZINSTEIN, on or about June 2, 2020, at approximately 2020, while assigned to TRN BUR and on duty, in the vicinity of West Street between Morris Street and Carlisle Street, New York County, wrongfully used force, in that he struck an individual with a baton twice about the lower body without police necessity.	DISMISSED	

DC Burio 3/12/24
FIRST DEPUTY COMMISSIONER DATE

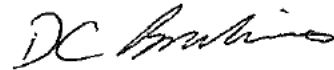
POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Caber 4/10/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner March 12, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-25457 against Sergeant Elliot Zinstein, Tax No. 947634, with the recommendation that the Charges and Specifications against Sergeant Zinstein be dismissed and that Sergeant Zinstein receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Jeffrey Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

APR 10 2024

EDWARD A. CABAN
POLICE COMMISSIONER